

Court No. - 32

Case :- WRIT - C No. - 37733 of 2019

Petitioner :- Ramu Maurya

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rajesh Kumar Yadav, Rama Shanker Yadav

Counsel for Respondent :- C.S.C., Usha Kiran

Hon'ble Shashi Kant Gupta, J.

Hon'ble Piyush Agrawal, J.

Heard Rajesh Kumar Yadav, learned counsel for the petitioner, learned standing counsel for the State respondents and Ms. Usha Kiran, learned counsel for the respondent nos. 2 and 3.

This writ petition has been, inter alia, filed for the following reliefs:

"(i) issue a writ order, rule or direction in the nature of writ of certiorari quashing the impugned recovery citation notice dated 15.6.2019 issued by the respondent no. 4 (Annexure no.2).

(ii) issue a writ order, rule or direction in the nature of mandamus directing the respondent no.3 to decide the representation dated 9.8.2019 and reminder dated 17.10.2019 submitted by the petitioner before the respondent no.3 within some stipulated period as fixed by this Hon'ble Court and till the disposal of the aforesaid representation no coercive action taken by the respondent no.3 and 4 against the petitioner.

(iii) issue any other writ order, rule or direction in favour of the petitioner, as this Hon'ble Court may deem fit and proper under the circumstances of the case, so as to secure the ends of the justice or else, the petitioner shall suffer irreparably.

(iv) award the cost of petition to the petitioner."

At the very outset Ms. Usha Kiran, learned counsel for the electricity department has raised a preliminary objection that the petitioner has got an alternative remedy to ventilate his grievance to file an application as provided under Clause 6.5 of the Electricity Supply Code, 2005 before the competent authority. Learned counsel for the petitioner has not disputed the objection raised by the learned counsel for the Electricity Department.

Taking into consideration the facts and circumstances of the case, we permit the petitioner to file an application under Clause 6.5 of the Electricity Supply Code, 2005 before the competent authority within two weeks from today. In case such an application is filed the competent authority shall decide the

same within four weeks thereafter after affording an opportunity of hearing to the petitioner. Till the disposal of the petitioner's application filed under Clause 6.5 of the Electricity Supply Code, 2005 no coercive action shall be taken against the petitioner.

With the aforesaid observation, the writ petition is disposed of.

Order Date :- 22.11.2019/samz